

"Civility allows for zealous representation, reduces clients' costs, better advances clients' interests, reduces stress, increases professional satisfaction, and promotes effective conflict resolution. These guidelines foster the civility and professionalism that are hallmarks of the best traditions of the legal profession."

OCBA Civility Guidelines

TENTATIVE RULINGS
Judge Kimberly Knill, Dept. C17

- **The court encourages remote appearances to save time, reduce costs, and increase public safety.** Go to www.occourts.org/media-relations/civil.html and click on the yellow box that says, "CLICK HERE TO APPEAR/CHECK IN FOR CIVIL SMALL CLAIMS/LIMITED/UNLIMITED/COMPLEX REMOTE PROCEEDINGS."
- All hearings are open to the public.
- If you desire a transcript of the proceedings, you **must** provide your own court reporter (unless you have a fee waiver and request a court reporter in advance).
- Call the other side. If **everyone** submits to the tentative ruling, call the clerk at 657-622-5217. Otherwise, the court may rule differently at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

HEARING DATE: Friday, 09/15/2023 10:00 AM

#	Case Name	Tentative
3	Howe vs Adoption Pro, Inc. 30-2020-01157334-CU-BC-CJC	Motion to be Relieved as Counsel of Record for Plaintiff Jeff Howe The motion of attorney Carlos C. Ignacio (Chung & Ignacio, LLP) to withdraw as attorney of record for Plaintiff Jeff Howe is GRANTED. (Code Civ. Proc., § 284, Cal. Rules of Court, rule 3.1362.) Moving attorney is to give notice. The withdrawal will become effective upon filing of a proof of service. Motion to be Relieved as Counsel of Record for Plaintiff Tasha Howe The motion of attorney Carlos C. Ignacio (Chung & Ignacio, LLP) to withdraw as attorney of record for Plaintiff Tasha Howe is GRANTED. (Code Civ. Proc., § 284, Cal. Rules of Court, rule 3.1362.)

		Moving attorney is to give notice. The withdrawal will become effective upon filing of a proof of service.
6	Mobilemoney, Inc. vs Cedar Fair, L.P. 30-2022-01281489-CU-BC-CJC	Defendant Cedar Fair, L.P.'s Motion to Compel Further Responses to Requests for Admission, Set One Defendant Cedar Fair, L.P.'s Motion to Compel Further Responses to Form Interrogatories - General, Set One Both motions are CONTINUED to 10/20/2023 at 10:00 AM. <i>All parties and/or counsel are ORDERED to appear in person; no Zoom appearances will be allowed.</i> The parties/counsel have not engaged in sufficient attempts to meet and confer. (See Code Civ. Proc., § 2016.040; <i>Clement v. Alegre</i> (2009) 177 Cal.App.4th 1277, 1293 [Discovery Act requires moving party to declare he or she has made a serious attempt to obtain an informal resolution of each issue; rule designed to encourage parties to work out their differences informally to avoid necessity for formal order, which lessens burden on court and reduces unnecessary expenditure of resources by litigants]; <i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 402 [central precept of Discovery Act that discovery be self-executing; discovery intended to operate with a minimum of judicial intervention].) The parties/counsel are ORDERED to engage in additional attempts to meet and confer <i>in person, telephonically, or over remote videoconferences (not email)</i> no later than sixteen court days before the new hearing date. The majority of the objections contend the terms in the discovery requests are vague and ambiguous. During a meet and confer, the parties are expected to agree to definitions of terms and include the agreed upon definitions in further responses. The parties/counsel are ORDERED to file a JOINT STATUS REPORT indicating whether court intervention remains the only option to resolve this discovery dispute, and if so, why, no later than nine court days before the new hearing date. Failure to comply with this order may result in sanctions against the non-compliant party and/or their counsel pursuant to Code of Civil Procedure section 177.5.